



January 10, 2024

Office of Governor Phil Murphy  
State of New Jersey  
PO Box 001  
Trenton, NJ 08625

**RE: VETO REQUEST – S332**

Dear Governor Murphy:

We write to respectfully request that you **VETO S332**.<sup>1</sup> Several significant and material changes were made to the bill in the last few days of the legislative session, leaving affected stakeholders and consumers little to no time to provide input on substantive edits prior to the bill's passage. Moreover, **S332, as drafted, represents the most onerous and restrictive approach to consumer privacy taken in the United States to date, standing in stark contrast to the approach taken by 14 other states.** As a result of an overly hasty legislative process, ambiguous provisions remain in the bill that are likely to result in significant confusion for consumers, businesses, and regulators alike. Below we provide a non-exhaustive list of key and significant issues with the bill that, if left unresolved by a veto from your office, will hinder consumers' access to online resources and significantly impair business operations in New Jersey.

- **Private Right of Action.** The business community and legislators agreed that a private right of action should not be included in S332. However, as passed, S332 reintroduces the threat of a private right of action by removing critical, long agreed-upon language that would foreclose the possibility for private enforcement. The agreed-upon language excluding the possibility for private claims was recently removed from the bill, reopening the door to the filing of class action lawsuits for bill violations. Businesses thus face a renewed threat of private litigation in contravention of earlier good-faith negotiations with legislators and with no time left in the session to address any resulting ambiguity.
- **Imprecise Standards.** S332 was substantively amended in December to convert its opt-in requirements for sales of consumer personal data and targeted advertising to an opt-out approach. However, imprecise legislative drafting left references to opting "into" sales or processing for targeted advertising in the bill's text, thereby creating confusing terms. Given S332's overall and complete opt-out approach for certain activities, it would logically follow that Sec. 8.b.(2)(b) does not intend to create a distinct opt-in requirements for those same activities when executed through a user-selected universal opt-out mechanism. This bill's imprecise language, however, creates significant uncertainty that will cause major implementation challenges for businesses and may result in legal challenges due to the vagueness of the bill's provisions. Such ambiguity will not only hinder a business's ability to determine its actual compliance obligations but also create unnecessary confusion for consumers about the rights available to them under the law.

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<sup>1</sup> New Jersey S332 (Gen. Sess. 2023), located [here](#).



Bills like S332 that are likely to impact both a large volume of consumers and a great portion of the economy should not be rushed through the legislative process without providing ample time to eliminate ambiguities. Rather than waiting to properly address several outstanding critical issues with the bill in a new legislative session, the New Jersey Legislature pushed S332 through in the waning hours of the session on January 8, 2024. More time is sorely needed to provide legislators, affected stakeholders, and consumers adequate opportunities to carefully review the bill as amended to ensure New Jersey advances practical and workable privacy protections for its residents.

While we agree that New Jersey consumers deserve meaningful privacy protections supported by reasonable laws and responsible industry practices, S332 would codify avoidable inconsistencies and unnecessary regulatory ambiguity that will result in confusion for New Jersey businesses and consumers alike. We urge you to **VETO S332**.

\* \* \*

Thank you for your consideration of this request.

Sincerely,

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